

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Drew C. Takaichi, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: June 24, 2024

TIME: 10:00 A.M.

*****NOTICE*****

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REMOTE THROUGH MICROSOFT TEAMS**

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shtml](https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml) to find the appropriate link.**

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see only the current version of the web page. Your browser will otherwise access old
information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	21PR191187	<i>In the matter of Pedro Rocha</i>	Petitioner, Karla Rocha and Kevin Cowan, attorney for claimant, Pedro Rocha, are ordered to appear at Court regarding deposit of claimant's funds in a blocked account pursuant to order of the Court.
LINE 2	23PR195989	<i>The Guist Family Revocable Trust, dated December 15, 1999</i>	Click or scroll to line 2 for tentative ruling.
LINE 3			
LINE 4			

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Calendar line 1

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Case Name: *The Guist Family Revocable Trust, dated December 15, 1999*

Case No.: 23PR195989

Hearing date, time, and department: June 24, 2024 at 10:00 a.m. in Department 2

INTRODUCTION

Trustors Leroy and Susan Guist executed the Guist Family Revocable Trust on December 15, 1999. The trust was amended multiple times during the lifetime of the settlors. Successor trustee Wells Fargo initiated this action in 2023 by filing a petition to confirm its status as trustee, to confirm its resignation, to appoint a successor trustee, and to confirm certain property as assets of the trust. The court granted the petition, appointing professional fiduciary Elizabeth Dean as trustee.

Currently before the court is Beneficiary Barbara Guist's ("Beneficiary") motion to reform the trust so as to allow purchase of an annuity. The motion is unopposed.

DISCUSSION

Beneficiary seeks to modify the trust under Probate Code section 15409, subdivision (a), which provides, "On petition by a trustee or beneficiary, the court may modify the administrative or dispositive provisions of the trust or terminate the trust if, owing to circumstances not known to the settlor and not anticipated by the settlor, the continuation of the trust under its terms would defeat or substantially impair the accomplishment of the purposes of the trust. In this case, if necessary to carry out the purposes of the trust, the court may order the trustee to do acts that are not authorized or are forbidden by the trust instrument."

Beneficiary notes that the trust instrument provides, "The intent is that the Trustee purchase an annuity or similar investment for each beneficiary that would pay a set monthly sum to each beneficiary for the course of their natural life. The type of investment will be in the sole discretion of the Trustee." She seeks to purchase an annuity without the oversight of the trustee, ostensibly to avoid paying trustee's fees. She has provided the declaration of a financial planner who indicates that there would be no fees for maintaining the annuity once it is purchased. She also points to the trustee's fee schedule, which is attached to Wells Fargo's petition as Exhibit J, contending that she will need to pay the trustee to monitor the annuity.

The court has "equitable power, founded in common law as discussed above, to modify the Trust provided (1) a "peculiar" or "exceptional" circumstance made modification necessary to accomplish the purpose of the trustors, and (2) there was some expression in the trust instrument of the purpose of the trustors." "[A] trust can be modified if provisions are ambiguous or if "slavish adherence" to the terms of the trust would defeat the primary purpose of the trust; but neither Probate Code Appendix section 17200 nor the common law of trusts permits the creation of a new agreement under the guise of a modification or reformation. [Citation.]" (*Estate of Sigourney* (2001) 93 Cal.App.4th 593, 605.)

Here, it appears that the payment of fees for a professional trustee was contemplated by the trustors. In fact, Wells Fargo, a professional trustee, was appointed a successor trustee